

misapplication of substantive common law affects the court's jurisdiction.¹⁰ As the Court points out, the relationship between the King's Bench and its rival ecclesiastical courts finds no parallel in our judicial system. *Ante*, at 535. There is no indication that the courts of this country ever resorted to the fictional use of prerogative writs found at English common law. To the contrary, our courts expressly have rejected the fiction and have limited the use of mandamus and prohibition to jurisdictional issues or to cases where the court has a clear duty to act. See *Roche v. Evaporated Milk Assn.*, 319 U. S. 21, 26 (1943). See also *Bankers Life & Casualty Co. v. Holland*, 346 U. S. 379, 382-383 (1953); *Will v. United States*, 389 U. S. 90, 103-104 (1967).

Nor is there any indication that the expansive use of prerogative writs in England modified the doctrine of judicial immunity in this country.¹¹ Indeed, the sparing use of the

¹⁰ For example, the Court cites Gordon, *The Observance of Law as a Condition of Jurisdiction*, 47 L. Q. Rev. 386, 393 (1931), which provides:

"The idea that to misapply or fail to apply substantive . . . law affects a judicial tribunal's jurisdiction, even when it acts within its province, is now generally recognized as wrong. That there was at one time doubt upon the point was due to the former hostility of the King's Bench toward . . . the ecclesiastical Courts. Although the King's Bench admitted it could not redress mere error in such Courts, it could, of course, restrain their excesses of jurisdiction through the writ of prohibition. And under the pretext that it was merely keeping them within their jurisdiction, it issued prohibitions to these Courts whenever they applied or construed any statute in a way the King's Bench did not approve of." (Footnotes omitted.) See also 3 W. Blackstone, *Commentaries* *113-*115; Dobbs, *The Decline of Jurisdiction By Consent*, 40 N. C. L. Rev. 49, 60-61 (1961).

¹¹ As early as the decision in *Bradley v. Fisher*, this Court drew a clear distinction between erroneous judicial acts committed within a judge's jurisdiction, for which there was absolute immunity, and acts committed in excess of jurisdiction, for which there was none. 13 Wall., at 351-353. This distinction, coupled with the principle that writs of mandamus and prohibition could issue only to correct clear jurisdictional errors, hardly suggests that the easy availability of prerogative writs against England's ecclesiastical courts limited the scope of judicial immunity in this country.